



**Bureau of Experts at the Council of Ministers
Official Translation Department**

Law of Eminent Domain and Temporary Taking of Real Property

Royal Decree No. M/56
September 4, 2025

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.

For any comments or inquiries, please contact the Official Translation Department at:

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No.: M/56

Date: 12/3/1447H

With the help of Almighty Allah,

We, Salman bin Abdulaziz Al Saud,

King of the Kingdom of Saudi Arabia,

Based on Article 70 of the Basic Law of Governance issued by Royal Order No. A/90, dated 27/8/1412H;

Based on Article 20 of the Law of the Council of Ministers issued by Royal Order No. A/13, dated 3/3/1414H;

Based on Article 18 of the Shura Council Law issued by Royal Order No. A/91, dated 27/8/1412H;

Upon perusal of Shura Council Resolutions No. 125/22, dated 15/6/1443H, and No. 301/30, dated 21/11/1446H; and

Upon perusal of Council of Ministers Resolution No. 177, dated 3/3/1447H;

Have decreed the following:

First:

The Law of Eminent Domain and Temporary Taking of Real Property shall be approved as per the attached form.

Second:

The provisions of the Law of Eminent Domain and Temporary Taking of Property issued by Royal Decree No. M/15, dated 11/3/1424H, shall apply to cases of expropriation and temporary taking of real property in which decisions approving the initiation of proceedings were issued prior to the effective date of the Law referred to in Clause (First) of this Decree.

Third:

The Ministry of Environment, Water, and Agriculture and the Ministry of Energy shall, within one year from the date of approval of the Law referred to in Clause (First) of this Decree, take the measures necessary to bill the costs of electricity and water consumption to the occupants of the real property, not the owners thereof. Such period may be extended pursuant to a resolution by the Council of Ministers.

Fourth:

Electricity and water bills for real property expropriated in accordance with the provisions of the Law referred to in Clause (First) of this Decree shall, during the period provided for in Clause (Third) of this Decree, be processed in accordance with the Mechanism for Processing Electricity and Water Bills for Expropriated Real Property in the Diriyah Development Project approved by Royal Decree No. M/74, dated 12/5/1445H.



Fifth:

His Highness the Prime Minister, the ministers, and the heads of relevant independent agencies shall, each within his jurisdiction, implement this Decree.

Signed

Salman bin Abdulaziz Al Saud



Resolution No.: 177

Date: 3/3/1447H

The Council of Ministers,

Upon perusal—in its session held under the chairmanship of the Custodian of the Two Holy Mosques, King Salman bin Abdulaziz Al Saud—of Casefile No. 87696, dated 28/11/1446H, received from the Royal Court regarding the draft Law of Eminent Domain and Temporary Taking of Real Property;

Upon perusal of the abovementioned draft Law;

Upon perusal of the Law of Eminent Domain and Temporary Taking of Property issued by Royal Decree No. M/15, dated 11/3/1424H;

Upon perusal of Royal Decree No. M/74, dated 12/5/1445H, approving the Mechanism for Processing Electricity and Water Bills for Expropriated Real Property in the Diriyah Development Project;

Upon perusal of Minutes No. 704, dated 2/12/1442H, and Memoranda No. 12, dated 1/1/1443H, No. 941, dated 24/4/1443H, No. 2340, dated 17/10/1443H, No. 119, dated 10/1/1444H, No. 649, dated 30/2/1444H, No. 2032, dated 2/7/1444H, No. 2408, dated 10/8/1444H, No. 2765, dated 13/9/1444H, No. 3850, dated 16/12/1444H, No. 273, dated 23/1/1445H, No. 2563, dated 16/7/1445H, No. 3650, dated 20/10/1445H, No. 208, dated 11/1/1446H, No. 765, dated 2/3/1446H, No. 50, dated 8/1/1447H, and No. 774, dated 20/2/1447H, prepared by the Bureau of Experts at the Council of Ministers;

Upon perusal of Recommendation No. 14-3/46/T, dated 23/3/1446H, of the Council of Economic and Development Affairs;

Upon perusal of Minutes No. 148/47/M, dated 29/1/1447H, prepared by the Council of Economic and Development Affairs;

Upon review of Shura Council Resolutions No. 125/22, dated 15/6/1443H, and No. 301/30, dated 21/11/1446H; and

Upon perusal of Recommendation No. 2084, dated 26/2/1447H, of the General Committee of the Council of Ministers;

Resolves the following:

First:

The Law of Eminent Domain and Temporary Taking of Real Property shall be approved as per the attached form.

Second:

The provisions of the Law of Eminent Domain and Temporary Taking of Property issued by Royal Decree No. M/15, dated 11/3/1424H, shall apply to cases of expropriation and temporary taking of real property in which decisions approving the initiation of proceedings were issued prior to the effective date of the Law referred to in Clause (First) of this Resolution.



Third:

The Ministry of Environment, Water, and Agriculture and the Ministry of Energy shall, within one year from the date of approval of the Law referred to in Clause (First) of this Resolution, take the measures necessary to bill the costs of electricity and water consumption to the occupants of the real property, not the owners thereof. Such period may be extended pursuant to a resolution by the Council of Ministers.

Fourth:

Electricity and water bills for real property expropriated in accordance with the provisions of the Law referred to in Clause (First) of this Resolution shall, during the period provided for in Clause (Third) of this Resolution, be processed in accordance with the Mechanism for Processing Electricity and Water Bills for Expropriated Real Property in the Diriyah Development Project approved by Royal Decree No. M/74, dated 12/5/1445H.

A draft royal decree has been prepared to this effect; its form is attached herewith.

Signed

Salman bin Abdulaziz Al Saud



Law of Eminent Domain and Temporary Taking of Real Property

Part 1: Definitions and General Provisions

Article 1: Definitions

For purposes of the application of the provisions of this Law, the following words and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

1. **Law:** Law of Eminent Domain and Temporary Taking of Real Property.
2. **Regulations:** Implementing Regulations of the Law.
3. **Authority:** State Properties General Authority.
4. **Board:** Board of Directors of the Authority.
5. **Governor:** Governor of the Authority.
6. **Entity Owning the Project:** Any government agency, company, or public benefit association implementing works that aim to achieve public interest in accordance with the Law.
7. **Government Agency:** Any ministry; public institution, agency, or authority; independent public entity in the Kingdom; or any affiliate thereof.
8. **Supervisory Agency:** The government agency supervising the activities of the entity owning the project if such entity is a company or an association.
9. **Real Property:** Land and everything permanently attached thereto which cannot be separated therefrom without being damaged, including buildings, plants, and the like.
10. **Project Plan:** A subdivision plan indicating the real property to be expropriated or temporarily taken.
11. **Cadastral Survey:** A technical report detailing the boundaries, dimensions, total area, and geographical coordinates of the real property to be expropriated or temporarily taken as well as the degree of refraction of all its angles.
12. **Accredited Valuer:** A natural or legal person licensed to practice valuation.
13. **Valuation Standards and Guidelines:** Standards and guidelines adopted by the Saudi Authority of Accredited Valuers.

Article 2

Real property may not be expropriated or temporarily taken except for public interest and in return for fair compensation, in accordance with the provisions of this Law and the Regulations.

Article 3

The provisions of this Law shall not apply to real property owned by the State or any of its agencies.

Article 4

Proceedings for the expropriation or temporary taking of real property shall only be taken if no State-owned real property fulfills the required purpose.



Article 5

For purposes of the application of this Law, “public interest” shall mean any public benefit of development or welfare, where the interest of society outweighs the private interest of any natural or legal person or government agency, as well as the prevention of public harm resulting from disasters, epidemics, and the like. This shall include any of the following works:

1. Projects for the development of the facilities of the Two Holy Mosques as well as those related to the rituals of Hajj or Umrah, or visiting the Prophet’s Mosque.
2. Projects for roads, streets, transportation lines, and public transportation facilities (land, sea, or air).
3. Projects for urban planning and development as well as projects for the construction of mosques, parks, and social, educational, and health service buildings, and the like.
4. Projects for power generation as well as water, electricity, gas, petroleum, sewage, flood drainage, communications, and government radio and television broadcasting networks.
5. Projects for drilling, prospecting, mining, and the like.
6. Projects for the preservation of environmental reserves and wildlife as well as the preservation of the State’s cultural, historical, and human heritage.
7. Projects for internal security and the establishment of military facilities.
8. Any other works that serve public interest as provided for in other laws.
9. Any other works determined to serve public interest pursuant to a resolution by the Council of Ministers.

Article 6

1. A person whose property is expropriated shall be entitled to compensation in accordance with the following:
 - a) The amount of compensation shall be determined based on the market value of the real property.
 - b) An amount shall be added to the market value referred to in paragraph (1)(a) of this Article as compensation for the expropriation; such amount shall be equal to 20% of the market value of the real property.
 - c) Compensation for any damages resulting from the expropriation proceedings.
2. A person whose real property is temporarily taken shall be entitled to compensation in accordance with the following:
 - a) The amount of compensation shall not be less than the rent of an equivalent real property.
 - b) An amount shall be added to the rent of the equivalent real property referred to in paragraph (2)(a) of this Article as compensation for the temporary taking of the real property; such amount shall be equal to 20% of the rent of the equivalent real property.
 - c) Compensation for any damages resulting from the temporary taking of the real property.
3. The provisions of this Article shall be applied pursuant to the valuation standards and guidelines.



Article 7

The entity owning the project shall—in coordination with the supervisory agency, as the case may be—submit a request to the Authority for approval of the initiation of the expropriation or temporary taking proceedings, in accordance with the following:

1. The request for approval of the initiation of expropriation proceedings must include the following:
 - a) The project plan and the cadastral survey.
 - b) The initial estimated cost of the expropriation. The Regulations shall specify the necessary criteria therefor.
 - c) Proof of the following:
 - i. Approval of the project costs in the budget of the entity owning the project if it is a government agency.
 - ii. Financial solvency if the entity owning the project is a company or an association.
The Regulations shall specify the relevant controls for this paragraph.
 - d) The project execution timeline.
 - e) A study on the potential social, economic, and security-related impact of the expropriation.
2. The request for approval of the initiation of temporary taking proceedings must include the following:
 - a) The project plan and the cadastral survey.
 - b) The initial estimated cost of the temporary taking. The Regulations shall specify the necessary criteria therefor.
 - c) Proof of the following:
 - i. Approval of the project costs in the budget of the entity owning the project if it is a government agency.
 - ii. Financial solvency if the entity owning the project is a company or an association.
The Regulations shall specify the relevant controls for this paragraph.
 - d) The estimated duration of the temporary taking of the real property.



Article 8

1. A request submitted in accordance with Article 7 of this Law shall be reviewed by a committee, or more, to be formed at the Authority under the name "Committee for the Expropriation and Temporary Taking of Real Property". The Committee shall be chaired by the Governor or his designee from among the members, and shall include, as members, representatives from the Authority, Ministry of Interior, Ministry of Finance, Ministry of Economy and Planning, Ministry of Municipalities and Housing, Ministry of Energy, Ministry of Investment, Ministry of Justice, and the Government Expenditure and Project Efficiency Authority. Committee members shall be of a rank not lower than grade "Thirteen", or its equivalent. The Committee may invite one or more representatives from the entity owning the project and the supervisory agency, if any, to attend its meetings in a non-voting capacity.
2. A request submitted in accordance with Article 7 of this Law shall be reviewed as follows:
 - a) Verifying that the project achieves public interest in accordance with this Law.
 - b) Verifying the availability of funds in the budget of the entity owning the project to cover the project's costs or verifying the entity's financial solvency, as the case may be, including the appropriation of funds in the manner specified in the Regulations.
 - c) Establishing that no State-owned real property fulfills the required purpose.
 - d) Determining the appropriate type of compensation for expropriation, whether cash or in-kind.
 - e) Considering the social, economic, and security-related impact of the project.
3. In case of a discrepancy of opinion between the entity owning the project or the supervisory agency, if any, and the Committee, the entity shall submit the request to the Prime Minister for a decision thereon.
4. The Committee shall convene with the attendance of its Chairman, or his designee from among committee members, and the majority of its members. Committee decisions shall be passed by a two-thirds majority.
5. The Committee may request from the Authority any information and documents necessary to carry out its duties. All agencies must cooperate with the Authority in this regard.
6. The Board shall issue the work rules and procedure of the Committee.



Part 2: Expropriation Proceedings

Article 9

1. The Authority shall, within 60 days from the date a request is submitted in accordance with Article 7 of this Law, notify the entity owning the project of the decision of the Committee for the Expropriation and Temporary Taking of Real Property.
2. The Governor shall issue a decision to initiate expropriation proceedings upon the Committee's approval in accordance with the procedures provided for in Article 8 of this Law.

Article 10

A decision to initiate expropriation proceedings in accordance with Article 9 of this Law may not be issued unless the entity owning the project has the allocations, solvency, or substitute lands necessary for the expropriation, as the case may be.

Article 11

The entity owning the project shall, immediately upon issuance of the decision to initiate expropriation proceedings, take the following measures:

1. Publish the decision in the Official Gazette and in at least one local newspaper in the area of the real property to be expropriated as well as through available electronic means. The Regulations shall specify the relevant controls.
2. Notify the relevant agencies and the owners of the real property to be expropriated of the decision and the start date for inventorying the appurtenances of the real property, in accordance with Article 33 of this Law.
3. Owners of real property to be expropriated who cannot be notified of the decision in accordance with Article 33 of this Law shall be deemed notified upon the lapse of 30 days from the date of publication of the decision in the Official Gazette pursuant to paragraph (1) of this Article.

Article 12

Owners of real property to be expropriated must submit to the entity owning the project, within the period specified thereby, the documents that establish their ownership of real property located within the project plan. Said period shall not be less than 15 days from the date of notification of the owners in accordance with Article 11 of this Law.



Part 3: Inventory and Valuation

Article 13

1. The entity owning the project or the supervisory agency, as the case may be, shall enter the real property subject to expropriation within the project plan in the presence of the owners, the owners' representatives, or the occupants, as the case may be, to inventory any immovable appurtenances.
2. The entity owning the project or the supervisory agency, as the case may be, shall form a committee chaired thereby with representatives from the relevant governorship and the Ministry of Interior as members. Said committee shall perform the duties provided for in this Article if, for any reason, the owners of the real property subject to expropriation refuse or fail to attend in accordance with paragraph (1) of this Article.
3. Without prejudice to the provision of paragraph (1) of this Article, if the entity owning the project is a company or an association, a representative of the same shall be present at the time of entering the real property subject to expropriation.
4. The entity owning the project or the supervisory agency, as the case may be, shall prepare an inventory report of the immovable appurtenances of the real property located within the project plan which shall include the property's type, general description, and appurtenances as well as any other information that may affect the assessment of compensation. Such report shall, if necessary, also include drawings, blueprints, photographs, and other forms of visual documentation as specified in the Regulations.
5. A list of the names of the owners of the real property to be expropriated as well as the relevant title deeds and documents shall be attached to the report referred to in paragraph (4) of this Article. The Regulations shall specify the relevant controls.
6. The report referred to in paragraph (4) of this Article shall be signed by the representatives of the entity owning the project or the supervisory agency, as the case may be; the owners of the real property to be expropriated; and the members of the committee referred to in paragraph (2) of this Article, if applicable. If any of the owners of the real property refuses to sign, or if it is practically infeasible for all the owners to sign, this shall be recorded in the report, together with the reasons therefor. Objections, if any, shall also be recorded. The Regulations shall specify the relevant controls.
7. The entity owning the project or the supervisory agency, as the case may be, may seek the assistance of relevant entities to perform the duties provided for in this Article and to verify that the documents establishing ownership of real property or rights in rem associated therewith satisfy Sharia and statutory requirements. Such entities shall cooperate with the entity owning the project or the supervisory agency, as the case may be, in performing said duties.
8. The entity owning the project or the supervisory agency, as the case may be, shall prepare a detailed report on the duties provided for in this Article which shall include the inventory report referred to in paragraph (4) of this Article as well as any documents and information related to the inventory of the appurtenances of the real property subject to expropriation. Such report shall be submitted to the Authority within a period not exceeding 60 days from the date of publication of the decision approving initiation of expropriation proceedings in the Official Gazette.



9. The Regulations shall specify the provisions necessary for inventorying the immovable appurtenances of real property located within the project plan, including the time frames related to notification of the date of the inventory, taking into account the types of real property and cases in which a real property is occupied by other than its owner.

Article 14

1. Valuation of the real property subject to expropriation and, in case of in-kind compensation, the substitute real property as well as the determination of the rent of an equivalent real property in accordance with this Law shall be assigned to three accredited valuers.
2. The entity owning the project shall be responsible for contracting with the valuers referred to in paragraph (1) of this Article and paying their fees.
3. Each accredited valuer shall independently inspect the real property and conduct the valuation based on the valuation standards and guidelines and shall issue a valuation report.
4. The entity owning the project shall provide the valuers with all the information necessary to perform their duties.

Article 15

1. Valuation reports issued in accordance with Article 14(3) of this Law shall be reviewed by a committee formed at the Authority to ensure that the valuations included in such reports comply with the valuation standards and guidelines. Said committee shall comprise three accredited valuers whose professional classification is not lower than the classification of the valuers referred to in Article 14 of this Law.
2. The chairman of the committee formed pursuant to paragraph (1) of this Article shall be named pursuant to a decision by the Governor. Such committee shall convene with the attendance of all its members.
3. The committee shall exclude any valuation that fails to comply with the valuation standards and guidelines and shall assign another accredited valuer to conduct the valuation in accordance with Article 14(2) of this Law.
4. The committee shall issue a recommendation with the average valuation price based on the reports issued in accordance with Article 14(3) of this Law which are in compliance with the valuation standards and guidelines.
5. The valuation price referred to in paragraph (4) of this Article shall be approved pursuant to a decision by the Governor, and the Authority shall notify the entity owning the project or the supervisory agency, as the case may be, and the owners of the real property to be expropriated thereof within a period not exceeding 90 days from the date the report is submitted to the Authority in accordance with Article 13(8) of this Law.



Part 4: Compensation and Vacation

Article 16

Compensation for expropriated real property shall be paid in cash. Compensation, or a portion thereof, may, however, be paid in kind subject to the approval of the owner of the real property. In-kind compensation may be made in the form of a substitute real property or financial shares in the project for which the real property was expropriated. The Regulations shall specify the relevant provisions.

Article 17

1. A person whose real property is expropriated shall be exempt from the real estate transaction tax arising from the purchase of a substitute real property, provided that the tax amount is equal to or less than the amount of the tax of the expropriated property at the time of expropriation, and that the substitute real property is purchased within a period not exceeding five years from the date of receipt of the compensation.
2. A person whose real property is expropriated shall be exempt from the white land tax if the compensation is granted in the form of a substitute land. The exemption period shall be determined by agreement between the Minister of Finance (Chairman of the Board) and the Minister of Municipalities and Housing.

Article 18

1. Notwithstanding Article 16 of this Law, if the entity owning the project is a government agency, the compensation for expropriation of a real property may be in the form of a substitute land if the real property is a vacant land that has not been invested or developed in any manner, and if such land is owned pursuant to a government grant and remains in the possession of the grantee. The Regulations shall specify the relevant provisions.
2. For purposes of the application of paragraph (1) of this Article, development shall mean carrying out, for investment or other purposes, any activity on the land, whether agricultural, construction, or otherwise, in a manner that causes a change in the land's features.
3. The condition of the land on the date of publication of the decision approving initiation of expropriation proceedings in the Official Gazette shall constitute the basis for determining the condition of development on the land in accordance with paragraph (2) of this Article.



Article 19

Compensation made in the form of a substitute land for a granted land as provided for in Article 18(1) of this Law shall be conditional upon the following:

1. The substitute land must be in the same location as the expropriated real property, or in any other location that offers similar advantages.
2. The market value of the substitute land must exceed that of the expropriated land by not less than 20% and not more than 40%. The Regulations shall specify the relevant provisions.
3. The substitute land referred to in this Article must be valued in accordance with the provisions and procedures for valuation provided for in Articles 14 and 15 of this Law.

Article 20

1. The condition of the real property to be expropriated on the date of publication of the decision approving initiation of expropriation proceedings in the Official Gazette shall constitute the basis for inventorying the appurtenances of the property. Any alteration, addition, improvement, construction, reclamation, planting, or the like made after such date shall not be taken into consideration.
2. The date of the first inspection of the real property to be expropriated by any of the valuers referred to in Article 14 of this Law shall constitute the basis for the valuation of such property.

Article 21

If the area of a real property as stated in the title deed differs from its actual area, assessment of compensation shall be based on the smaller area, without prejudice to the owner's right to prove his ownership of any part of the property not included in the assessment.

Article 22

If expropriation is limited to part of the real property, the following shall apply:

1. The value of the area of the part subject to expropriation and the buildings and plants thereon shall be assessed if the remaining part of the land, buildings, or plants are usable pursuant to the technical directives applicable in the relevant area. The costs of repairing and renovating any remaining buildings shall be added to such value, in addition to the cost of depreciation in the value of the remaining part of the land, buildings, and plants.
2. The value of the area of the part subject to expropriation and the buildings and plants thereon shall be assessed as well as the value of the buildings and plants on the remaining part of the real property, and the cost of depreciation in the value of the remaining part of the land shall be added thereto, if, after expropriation of the part needed for the project, the remaining buildings and plants are unusable and the remaining part of the land is usable pursuant to the technical directives applicable in the relevant area. The entity owning the project shall be responsible for demolishing and removing the remaining buildings and plants, unless it agrees with the owner to keep such buildings and plants intact, provided that they do not pose any threat nor conflict with the city's urban plans. The Regulations shall specify the relevant provisions.
3. The whole real property, including land, buildings, and plants, shall be expropriated if the remaining part of the land, after expropriation of the part needed for the project, is unusable according to the technical directives applicable in the area, or if the cost of repairing the remaining part of the real property is equal to or exceeds the cost of expropriation.



4. Assessment of the usability of the remaining part of the real property, buildings, and plants shall be conducted by a committee formed by the Authority with the membership of a representative from the Ministry of Municipalities and Housing and a representative from the entity owning the project as well as a representative from the Ministry of Environment, Water, and Agriculture if the land in question is agricultural. Such committee shall issue a report to such effect and shall complete the necessary procedures in accordance with the mechanism provided for in Articles 14 and 15 of this Law.

Article 23

1. The Authority shall, in agreement with the entity owning the project, determine the date for vacating the real property subject to expropriation, and shall notify the owners of the same.
2. Payment of the cash or in-kind compensation shall be made prior to the date set for vacation, save in exceptional cases to be determined pursuant to a decision by the Governor in agreement with the senior official at the entity owning the project or the supervisory agency, as the case may be, in accordance with the Regulations.
3. If the cash or in-kind compensation for the expropriated real property is not paid within three years from the date of the decision approving initiation of expropriation proceedings, the owner of the property may apply for reassessment, unless the delay is attributed to the owner.
4. If the value of compensation, based on the reassessment provided for in paragraph (3) of this Article, is less than the previous assessment, the higher assessment shall apply.
5. The Regulations shall specify the provisions of vacation, including the time frames for notification of the vacation date, actual vacation, and payment of compensation, taking into account the types of real property and cases in which a real property is occupied by other than its owner.

Article 24

1. If the real property subject to expropriation is vacated before compensation is paid, its owner shall be entitled to the rent of an equivalent real property for the period between the vacation and the payment of compensation, in addition to 10% of the amount of said rent, unless the delay in receiving the compensation is attributed to the owner. The Regulations shall specify the relevant controls.
2. The rent of an equivalent real property referred to in paragraph (1) of this Article shall be determined in accordance with the valuation mechanism provided for in Articles 14 and 15 of this Law.



Part 5: Temporary Taking of Real Property

Article 25

A real property may be temporarily taken subject to fair compensation to realize a temporary public interest. Said compensation shall be determined pursuant to the procedures provided for in Articles 14 and 15 of this Law, without prejudice to the provisions of Article 6(2) of this Law. The temporary taking of real property shall not preclude the initiation of expropriation proceedings on such property, if required, in accordance with this Law and the Regulations.

Article 26

The senior official at the entity owning the project or the supervisory agency, as the case may be, shall issue the temporary taking decision, in accordance with the following:

1. The decision must include the duration and purpose of the temporary taking.
2. The Committee for the Expropriation and Temporary Taking of Real Property must approve the temporary taking prior to the issuance of the decision.
3. The entity owning the project or the supervisory agency, as the case may be, must notify the Authority of the decision referred to in this Article.

Article 27

1. Notwithstanding the provision of Article 26(2) of this Law, the senior official shall issue the temporary taking decision in emergency situations and shall, within a period not exceeding 30 days from the date of issuance of the decision, take the measures necessary to notify the Committee for the Expropriation and Temporary Taking of Real Property thereof.
2. For purposes of the application of paragraph (1) of this Article, an emergency situation shall mean a situation where public safety, security, or health is seriously and unexpectedly threatened, or which involves a risk of potential loss of life or property, and which cannot be promptly addressed due to certain proceedings relating to the expropriation of real property or the temporary taking thereof, in accordance with this Law and the Regulations.
3. The Regulations shall specify the provisions relating to this Article as well as Article 26 of this Law, including provisions relating to the duration and purpose of the temporary taking of real property.

Article 28

1. The maximum period for the temporary taking of real property must not exceed three years.
2. If the entity owning the project or the supervisory agency, as the case may be, decides that the period provided for in paragraph (1) of this Article is insufficient, it may extend the same for a period not exceeding three years, subject to the approval of the Committee for the Expropriation and Temporary Taking of Real Property and the concerned owners. The Regulations shall specify the relevant provisions.
3. If it is not feasible to reach an agreement with the owners of the real property pursuant to paragraph (2) of this Article, the entity owning the project shall vacate the property at the end of the period provided for in paragraph (1) of this Article.



Article 29

Absent a specific provision in this Law and the Regulations, the provisions governing leasing real property shall apply to cases of temporary taking of real property, in a manner not inconsistent with the nature of the temporary taking of real property.

Part 6: Final Provisions

Article 30

The provisions of this Law shall not prejudice the right of any adversely affected person, other than the owners of the real property subject to expropriation or temporary taking, to claim compensation for any damages sustained due to any of the expropriation or temporary taking proceedings.

Article 31

1. The provisions of this Law shall not prejudice the right of the owners of real property subject to expropriation or temporary taking to dispose of such property.
2. The buyer shall replace the seller vis-à-vis all rights and obligations related to the expropriation or temporary taking of real property referred to in paragraph (1) of this Article. The seller shall notify the buyer of any action taken with regard to such property.
3. The Regulations shall specify the rules for implementing the provisions of this Article.

Article 32

1. If, during expropriation proceedings or after completion thereof, the need to expropriate the real property ceases to exist, the entity owning the project or the supervisory agency, as the case may be, shall notify the Authority within a period not exceeding 90 days from the date of such cessation.
2. If the need for expropriation ceases to exist prior to the notification of the owner of the real property of the decision to initiate expropriation proceedings in accordance with Article 33 of this Law, expropriation proceedings shall not be completed.
3. Without prejudice to the provisions of paragraphs (1) and (2) of this Article, the Authority shall notify the owner that the need for expropriating his property ceases to exist and he shall be entitled to apply for reclamation of the property within one year from the date of notification. If the owner fails to apply for reclamation within said period, the Authority may, upon completion of expropriation proceedings, dispose of the property as a State-owned property in accordance with relevant statutory provisions.
4. The owner of a property subject to expropriation must return any compensation received in order to apply for reclamation of the property in accordance with paragraph (3) of this Article. The period during which the property was vacated shall be treated, for the purposes of calculating compensation, as a temporary taking of property in accordance with Article 25 of this Law. The Regulations shall specify the relevant provisions.



Article 33

Notification of the owners of real property subject to expropriation or temporary taking in accordance with the provisions of this Law shall be made through two of the following means:

1. SMS messages sent to the owners' registered mobile phone numbers.
2. Email.
3. Any of the owners' accounts in any automated government system.

The Regulations shall specify the relevant provisions.

Article 34

As of the date on which the owners of real property subject to expropriation are notified of the decision of the initiation of expropriation proceedings, property within the project plan may not be subdivided, divided, or merged, and licenses may not be granted to engage in any activity thereon.

Article 35

1. A person may not take part in any expropriation or temporary taking proceeding if he has a direct or indirect interest in or relation to the property subject to expropriation or temporary taking, is related by blood or marriage to any of the owners of said property, or is a legal representative of any of such owners. The Regulations shall specify the relevant controls.
2. Without prejudice to applicable statutory provisions, a person who takes part in any expropriation or temporary taking proceeding shall maintain the confidentiality of any information, documents, and data to which he becomes privy by virtue of his employment.

Article 36

Any person against whose real property a decision is issued pursuant to this Law and the Regulations may appeal such decision in accordance with relevant statutory procedures.

Article 37

This Law shall supersede the Law of Eminent Domain and Temporary Taking of Property issued by Royal Decree No. M/15, dated 11/3/1424H, and shall repeal any provisions conflicting therewith.

Article 38

The Authority shall, in coordination with the Ministry of Investment and the Government Expenditure and Project Efficiency Authority, draft the Regulations which shall be approved by the Board and issued pursuant to a Council of Ministers resolution within 120 days from the date of publication of this Law in the Official Gazette.

Article 39

This Law shall enter into force 120 days after the date of its publication in the Official Gazette.